

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, EXTRAORDINARY, PART II SECTION 3,
SUB-SECTION (i)]
GOVERNMENT OF INDIA
MINISTRY OF FINANCE
DEPARTMENT OF REVENUE

Notification No. 70/2024–Customs (N.T)

New Delhi, the 23rd October, 2024

G.S.R____(E). – Whereas, the notification no. 50/2017-Customs, dated the 30th June, 2017 of the Government of India, Ministry of Finance, Department of Revenue (hereinafter referred to as the said notification) allowed duty free import of goods of the description “Rough diamonds (industrial or non-industrial)” falling within Chapter 71 as specified against serial number (S.No.) 345 of the said notification;

And whereas, the said notification was amended by notification no. 02/2022-Customs, dated the 1st February, 2022, allowing duty free import of goods of the description “Simply Sawn Diamonds” falling under the sub-heading or tariff Item “7102 21, 7102 3100” (hereinafter referred to as the said goods) by inserting serial number (S.No.) 345A, subject to condition number 110 that “If, the importer produces before the Deputy Commissioner of Customs or the Assistant Commissioner of Customs, as the case may be, a certificate issued under Kimberly Process Certification Scheme (KPCS) certifying that the imported goods are diamonds, not further worked than simply sawn”, with effect from 2nd February, 2022;

And whereas, the Central Government is satisfied that a practice was generally prevalent regarding non-levy of duty of customs leviable under the First Schedule of the Customs Tariff Act, 1975 (51 of 1975), read with the notification no. 50/2017-Customs, dated the 30th June, 2017, as amended, on the said goods imported into India during the period from 1st July, 2017 to 1st February, 2022;

Now, therefore, in exercise of the powers conferred by section 28A of the Customs Act, 1962 (52 of 1962), the Central Government, hereby directs that the whole of the duty of customs leviable under the First Schedule of the Customs Tariff Act, 1975 (51 of 1975) read with the said notification, if any payable on the import of the said goods, during the period from 1st July, 2017 to 1st February, 2022, but for the said practice, shall not be required to be paid in respect of import of the said goods.

[No. 450/269/2022-CusIV]

(Sanjeet Kumar)
Under Secretary to the Government of India